



OSMANIA UNIVERSITY

LL.B. (3-YDC)

Semester IV

Complete Exam Notes

For **LL.B. (General)** and **LL.B. (Honours)** students

Full syllabus · Simple English · Latest cases · Questions with answers

PAPERS IN THIS BOOK

Paper I	Labour Law-II (Wages, Social Security and Welfare)
Paper II	Law of Insurance
Paper III	Interpretation of Statutes
Paper IV	Land Laws (with Telangana Laws)
Paper V	Intellectual Property Law
Paper VI	Private International Law

INSIDE EVERY PAPER

- ◆ **Whole syllabus**, unit by unit, topic by topic
- ◆ Written in **simple, plain English** with tables
- ◆ **Sections and leading cases** for every topic
- ◆ **Latest cases** and recent amendments as examples
- ◆ **Points to remember** after every unit
- ◆ **Quick revision tables** for the last day
- ◆ **Short answers, essay guides and solved problems** in the exam pattern

About This Book

This book contains complete exam notes for **Semester IV** of the **LL.B. (3-YDC)** course of **Osmania University**. All the papers of the semester are bound together in one book, with one set of page numbers.

Who Can Use This Book

Course	How to use it
LL.B. (Honours)	Follows the LL.B. (Hons) scheme of the semester – every paper, in the same order as the syllabus.
LL.B. (General)	The subjects that are common to the General course are covered by the same notes. Please match the units with your own syllabus copy; extra Honours topics can be skipped.

What Every Paper Contains

1. **Unit-wise notes** – every topic in the syllabus, in the same order as the syllabus.
2. **Simple, plain English** – short sentences, tables and easy rules.
3. **Sections and leading cases** – with the **latest cases and amendments** as examples.
4. **Points to remember** at the end of each unit.
5. **Quick revision tables** – sections, comparisons and recent cases for the last day.
6. **Questions and answers** – short answers, essay answer guides and solved problems in the exam pattern.

How to Use This Book for the Exam

1. Read each unit once fully. Mark the sections and the case names.
2. Learn the **Points to Remember** – they are ready-made short answers.
3. Practise the **essay answer guides** by writing each answer in your own words.
4. Solve the **problem questions** in the order: Facts – Issue – Law – Application – Conclusion.
5. On the day before the exam, read only the **Quick Revision** tables.

Please Note

This book is an **independent study aid**. It is not an official publication of Osmania University. The questions are **model questions** framed on the syllabus and the usual exam pattern. The law changes often – please check **recent amendments and recent cases** with the bare Act or an official source before quoting them. The book is for study purposes only and is not legal advice.

Saath Legal – Exam-Ready LLB Notes | www.saathlegal.com | 2026–27 Edition

Contents – Semester IV

Each paper begins with its own detailed contents page.

Paper I – Labour Law-II (Wages, Social Security and Welfare)	5
Unit-I: Wages – Concepts, Payment of Wages and Minimum Wages	8
Unit-II: Bonus	21
Unit-III: Social Security, Employee's Compensation and ESI	30
Unit-IV: Provident Fund, Maternity Benefit and Gratuity	42
Unit-V: Factories Act, Child Labour and Equal Remuneration	53
Quick Revision – Sections, Numbers, Comparisons and Latest Cases	65
Previous Year Questions and Answers	69
Paper II – Law of Insurance	87
Unit-I: Growth, Definition and Basic Principles of Insurance	90
Unit-II: Kinds of Insurance, Basic Doctrines, Life and Accident Insurance, and LIC	99
Unit-III: Marine Insurance	112
Unit-IV: Fire Insurance and Burglary Insurance	122
Unit-V: Social Control, Compulsory Insurance, Third Party Rights and IRDAI	133
Quick Revision – Principles, Numbers, Comparisons and Latest Cases	144
Previous Year Questions and Answers	148
Paper III – Interpretation of Statutes	164
Unit-I: Statutes, Interpretation and the General Clauses Act, 1897	167
Unit-II: Literal, Golden and Mischief Rules, and Law Commission Reports	177
Unit-III: Penal and Taxing Statutes, Beneficial and Harmonious Construction	186
Unit-IV: External and Internal Aids to Interpretation, and Presumptions	195
Unit-V: Repeal, Amendment, Subordinate Legislation and Substantive vs Procedural Laws	204
Quick Revision – Rules, Maxims, Comparisons and Latest Cases	213
Previous Year Questions and Answers	217
Paper IV – Land Laws (with Telangana Laws)	231
Unit-I: Classification and Ownership of Land, Land Records and Land Titling	234
Unit-II: Land Reforms – Land Tenure Systems, Abolition of Intermediaries and Tenancy Laws	246
Unit-III: Land Acquisition – The RFCTLARR Act, 2013	254
Unit-IV: Ceiling on Land Holdings, Ninth Schedule, Directive Principles, Survey and Forest Rights	262
Unit-V: Alienation Laws, Resumption of Lands and Resolution of Land Disputes	272
Quick Revision – Laws, Numbers, Comparisons and Latest Developments	280
Previous Year Questions and Answers	284
Paper V – Intellectual Property Law	297
Unit-I: Intellectual Property – Meaning, Forms and New Forms	301

Unit-II: International Protection of Intellectual Property	309
Unit-III: Copyright	320
Unit-IV: Trade Marks and Industrial Designs	337
Unit-V: Patents	358
Quick Revision – Sections, Numbers, Comparisons and Latest Cases	375
Previous Year Questions and Answers	380

Paper VI – Private International Law 395

Unit-I: Nature, History, Theories, Characterisation, Renvoi and Validity of Contracts	398
Unit-II: Application and Exclusion of Foreign Law, Domicile and Jurisdiction	415
Unit-III: Marriage and Matrimonial Causes	430
Unit-IV: Legitimacy, Legitimation, Adoption, Guardianship and Custody	446
Unit-V: Commercial Contracts	457
Quick Revision – Rules, Connecting Factors, Comparisons and Latest Cases	468
Previous Year Questions and Answers	473

PAPER V

Intellectual Property Law

OSMANIA UNIVERSITY

LL.B. (3-YDC)

SEMESTER IV

IN THIS PAPER

- ◆ Unit-I: Intellectual Property – Meaning, Forms and New Forms
- ◆ Unit-II: International Protection of Intellectual Property
- ◆ Unit-III: Copyright
- ◆ Unit-IV: Trade Marks and Industrial Designs
- ◆ Unit-V: Patents
- ◆ Quick Revision – Sections, Numbers, Comparisons and Latest Cases
- ◆ Previous Year Questions and Answers

Contents – Intellectual Property Law – Semester IV – Exam Notes

Unit-I: Intellectual Property – Meaning, Forms and New Forms	301
Meaning of Intellectual Property	301
Significance and Need for Protection of Intellectual Property	302
Main Forms of Intellectual Property	303
New Forms of Intellectual Property	305
Unit-II: International Protection of Intellectual Property	309
Evolution of International Protection of IPRs	309
General Principles of International Protection	310
The Paris Convention for the Protection of Industrial Property, 1883	310
The Berne Convention for the Protection of Literary and Artistic Works, 1886	312
The Madrid Agreement (1891) and the Madrid Protocol (1989)	313
The Patent Cooperation Treaty (PCT), 1970	314
The World Intellectual Property Organization (WIPO) Convention, 1967	315
WIPO Copyright Treaty (WCT), 1996	316
The TRIPS Agreement, 1994 and Its Impact	317
Unit-III: Copyright	320
Meaning and Nature of Copyright	320
The Copyright Act, 1957 – Salient Features	321
Idea–Expression Dichotomy	322
Subject-Matter of Copyright Protection	323
Neighbouring (Related) Rights	325
Ownership of Copyright	325
Rights of Authors and Owners	327
Assignment of Copyright	328
Collective Management of Copyright – Copyright Societies	330
Infringement of Copyright and Criteria	331
Exceptions to Infringement – Doctrine of Fair Use (Fair Dealing)	332
Authorities under the Act	334
Remedies for Infringement of Copyright	335
Unit-IV: Trade Marks and Industrial Designs	337
Intellectual Property in Trade Marks and the Rationale of Their Protection	337
The Trade Marks Act, 1999 – Salient Features	338

Definition of Trade Mark and Trade Description	338
Kinds of Trade Marks – Conventional and Non-Conventional	340
Trade Marks and Internet Domain Names	342
Registration of Trade Marks	344
Rights of Trade Mark Owners	346
Passing Off	347
Infringement of Trade Mark	350
Remedies for Infringement and Passing Off	351
Concept of Industrial Designs	352
The Designs Act, 2000	352
Definition and Characteristics of Design	353
Registration of Design	354
Rights of Design Holders	354
Copyright in Design – Overlap with the Copyright Act	355
Piracy of Registered Design and Remedies for Infringement	356
Unit-V: Patents	358
Concept of Patent	358
Historical Overview of Patent Law in India	359
The Patents Act, 1970 and Its Salient Features	360
Patentable Inventions	360
Kinds of Patents	363
Procedure for Obtaining a Patent in India	364
Procedure for Obtaining a Patent in Other Countries – The PCT Procedure	366
Rights and Obligations of a Patentee	367
Limitations on Patent Rights	368
Infringement of Patent Rights and Remedies	371
Quick Revision – Sections, Numbers, Comparisons and Latest Cases	375
Key Sections at a Glance	375
Key Numbers and Dates	377
Important Comparisons	378
Latest Cases and Developments at a Glance	378
Previous Year Questions and Answers	380
How to Write Answers in the Exam	380

Short Answer Questions (4 Marks)	380
Essay Questions (10 Marks) – Answer Guides	386
Problem Questions (10 Marks) with Answers	390

SAATH LEGAL
www.saathlegal.com

Unit-I: Intellectual Property – Meaning, Forms and New Forms

Meaning of Intellectual Property

1. Meaning

Intellectual property (IP) means **creations of the human mind – inventions, literary and artistic works, designs, symbols, names and images** used in commerce – which the **law protects** by granting the creator **exclusive rights** for a **limited period**.

WIPO Convention, 1967 (Art. 2(viii)) – "intellectual property" includes rights relating to:

1. **Literary, artistic and scientific works;**
2. **Performances** of performing artists, **phonograms** and **broadcasts;**
3. **Inventions** in all fields of human endeavour;
4. **Scientific discoveries;**
5. **Industrial designs;**
6. **Trademarks, service marks, and commercial names and designations;**
7. Protection against **unfair competition;**
8. All other rights resulting from **intellectual activity** in the industrial, scientific, literary or artistic fields.

TRIPS Agreement (Art. 1(2)) – IP refers to all categories covered in Part II: **copyright and related rights, trademarks, geographical indications, industrial designs, patents, layout-designs of integrated circuits, and undisclosed information (trade secrets)**.

2. Nature of Intellectual Property Rights (IPRs)

Feature	Explanation
1. Intangible property	IP is incorporeal – it exists in ideas and expressions, not in physical objects (the book is tangible; the copyright in it is intangible)
2. Creation of law (statutory)	IPRs exist only because statutes create them (Patents Act, Copyright Act, Trade Marks Act etc.)
3. Exclusive rights	The owner can exclude others from using the IP – a negative right (right to prevent copying, making, selling)
4. Territorial	IPRs are territorial – protected only in the country where granted/registered (except as provided by treaties)
5. Limited duration	Most IPRs last for a limited period (patents 20 years, copyright life + 60 years, designs 15 years); trademarks and GIs can be renewed indefinitely
6. Assignable and licensable	IPRs can be transferred (assignment) or licensed – like other property

Feature	Explanation
7. Balance of interests	IP law balances the private interest of creators (reward) with the public interest (access to knowledge, competition) – through exceptions, limited terms, compulsory licences
8. Subject to public interest limits	Fair dealing, compulsory licensing, government use, exclusions (e.g., S. 3(d), Patents Act)
9. Requires disclosure (for patents)	Patent protection in exchange for public disclosure of the invention

3. Classification of Intellectual Property

Category	Forms	Indian law
Industrial property	Patents, trademarks, industrial designs, geographical indications, layout-designs, trade secrets , protection against unfair competition	Patents Act, 1970; Trade Marks Act, 1999; Designs Act, 2000; GI Act, 1999; SICLD Act, 2000
Copyright and related (neighbouring) rights	Literary, dramatic, musical, artistic works, cinematograph films, sound recordings, computer programs; performers' rights, broadcasting rights	Copyright Act, 1957
Sui generis (special) rights	Plant varieties, farmers' rights, traditional knowledge, biodiversity	PPV&FR Act, 2001; Biological Diversity Act, 2002

Easy rule: Two big families – industrial property (inventions and commercial signs) and copyright (creative works) – plus new sui generis rights.

Significance and Need for Protection of Intellectual Property

1. Theories Justifying IP Protection

Theory	Explanation
Natural rights (Labour) theory – John Locke	A person who mixes his labour with resources is entitled to the fruits of his labour – creators deserve ownership of their creations
Personality theory – Hegel	Creative works are an extension of the creator's personality – basis for moral rights
Utilitarian / incentive theory – Bentham, Mill	IP rights give incentives to create and invent, which benefits society (more knowledge, products); limited monopoly is the price for public benefit
Social planning theory	IP should promote a just and attractive culture , balancing access and reward
Economic / reward theory	Reward for investment and risk in research and creation

2. Significance / Need

1. **Encourages innovation and creativity** – rewards inventors, authors, artists.
2. **Economic growth** – IP-intensive industries (pharma, IT, films, music, fashion) contribute heavily to GDP and exports.
3. **Attracts investment and technology transfer** – investors and foreign companies need IP security.
4. **Protects consumers** – trademarks and GIs indicate **source and quality**, preventing **deception**.
5. **Disclosure of knowledge** – patents require **public disclosure**, enriching the knowledge base.
6. **Protects traditional knowledge and culture** – GIs (e.g., **Pochampally Ikat, Hyderabad Haleem**), PPV&FR.
7. **Fair competition** – prevents **free-riding** and unfair trade practices.
8. **International trade** – TRIPS compliance is necessary for WTO membership.
9. **Start-ups and MSMEs** – IP is a **key asset** for funding.

3. India's IP Policy

1. **National IPR Policy (2016)** – slogan "**Creative India; Innovative India**" – seven objectives: IPR awareness, generation of IPRs, legal and legislative framework, administration and management, commercialisation, enforcement and adjudication, human capital development.
2. **Cell for IPR Promotion and Management (CIPAM)** under DPIIT.
3. **Patent filings** by Indians have grown sharply – in **2023–24**, India's patent office received over **92,000** applications, with a majority filed by **Indian residents** for the first time in recent years; India is among the **top six** patent filing countries.
4. **Global Innovation Index** – India improved to **39th** (2024) / **38th** (2025) from 81st in 2015.
5. **Commercial Courts Act, 2015** – IP suits as commercial disputes; **IP Division** of the **Delhi High Court** (2021) after abolition of the **Intellectual Property Appellate Board (IPAB)** by the **Tribunals Reforms Act, 2021**; **Madras High Court** also set up an IP Division.

Main Forms of Intellectual Property

1. Patents

Point	Details
Meaning	An exclusive right granted by the State to an inventor for an invention (product or process) that is new , involves an inventive step and is capable of industrial application , in exchange for full disclosure
Law	Patents Act, 1970 (amended 1999, 2002, 2005); Patents Rules, 2003 (amended 2024)
Term	20 years from the date of filing
Rights	To prevent others from making, using, offering for sale, selling or importing the patented product/process

Point	Details
Office	Controller General of Patents, Designs and Trade Marks (CGPDTM) – offices at Kolkata (HQ), Delhi, Mumbai, Chennai

2. Trademarks

Point	Details
Meaning	A mark capable of being represented graphically and distinguishing the goods or services of one person from those of others – words, logos, shapes, packaging, colour combinations, sounds
Law	Trade Marks Act, 1999
Term	10 years, renewable indefinitely for 10 years each
Function	Indicates source , guarantees quality , advertises; protects consumers from confusion
Examples	"Amul", "Tata", Nike "swoosh", Britannia's sound mark, the Yahoo yodel

3. Industrial Designs

Point	Details
Meaning	Features of shape, configuration, pattern, ornament or composition of lines or colours applied to an article , which appeal to and are judged solely by the eye (aesthetic, not functional)
Law	Designs Act, 2000
Term	10 years, extendable by 5 years (total 15)
Examples	Shape of a bottle, pattern on a saree, design of a car body, a lamp

4. Geographical Indications (GIs)

Point	Details
Meaning	An indication that identifies goods (agricultural, natural, manufactured, handicrafts, foodstuffs) as originating in a particular territory , where a given quality, reputation or characteristic is essentially attributable to its geographical origin
Law	Geographical Indications of Goods (Registration and Protection) Act, 1999 (in force 2003); GI Registry at Chennai
Term	10 years, renewable indefinitely
Who registers	An association of producers or organisation representing their interests; authorised users
Examples	Darjeeling Tea (India's first GI, 2004), Basmati, Kanchipuram silk, Mysore silk, Alphonso mango

Point	Details
Telangana GIs	Pochampally Ikat, Hyderabad Haleem (first meat product GI, 2010), Karimnagar Silver Filigree, Nirmal Toys and Crafts, Nirmal Paintings, Gadwal Sarees, Narayanpet Handloom Sarees, Siddipet Gollabhama Sarees, Pembarthi Metal Craft, Cheriya Scroll Paintings, Adilabad Dokra, Warangal Durries, Telia Rumaal, Tandur Red Gram

5. Copyright and Neighbouring Rights

Point	Details
Meaning	An exclusive right of authors of original literary, dramatic, musical and artistic works , and producers of cinematograph films and sound recordings , to reproduce, publish, perform, communicate, adapt and translate their works
Law	Copyright Act, 1957 (amended 1994, 2012)
Term	Lifetime of author + 60 years for literary, dramatic, musical and artistic works (including photographs , after the 2012 amendment); 60 years from publication for cinematograph films, sound recordings , anonymous/pseudonymous works and Government works
Registration	Not compulsory – protection is automatic on creation (Berne principle)
Neighbouring (related) rights	Performers' rights (S. 38 – 50 years), broadcast reproduction rights (S. 37 – 25 years), rights of producers of sound recordings

6. Other Forms

1. **Trade secrets / undisclosed information** – protected by **contract** and **equity** (breach of confidence) in India; no specific statute (TRIPS Art. 39) – e.g., the **Coca-Cola formula**.
2. **Layout-designs of integrated circuits** – SICLD Act, 2000.
3. **Plant varieties** – PPV&FR Act, 2001.

New Forms of Intellectual Property

1. Plant Varieties Protection and Farmers' Rights

Background: TRIPS Art. 27(3)(b) requires members to protect **plant varieties** either by **patents**, an **effective sui generis system**, or a combination. India chose a **sui generis** system – the **Protection of Plant Varieties and Farmers' Rights Act, 2001 (PPV&FR Act)** – which, unlike the **UPOV** model, gives strong farmers' rights.

Main features:

Feature	Details
Authority	Protection of Plant Varieties and Farmers' Rights Authority (New Delhi)
Registrable varieties	New, extant (existing, including farmers' varieties) and essentially derived varieties satisfying DUS criteria – Distinctiveness, Uniformity and Stability (and novelty for new varieties)

Feature	Details
Breeders' rights	Exclusive right to produce, sell, market, distribute, import or export the variety
Duration	18 years for trees and vines; 15 years for other crops (from registration; extant varieties – 15 years from notification)
Farmers' rights (S. 39)	A farmer is entitled to save, use, sow, re-sow, exchange, share or sell his farm produce, including seed of a protected variety, in the same manner as before – but not sell branded seed of a protected variety; farmers can register their own varieties; reward for conservation; compensation if a registered variety fails to perform as claimed; protection against innocent infringement
Researchers' rights	Use of registered varieties for research and breeding
Benefit sharing	Communities contributing to a variety can claim benefit sharing
National Gene Fund	For conservation and benefit sharing

Case: PepsiCo India Holding v Kavitha Kuguranti – PepsiCo had sued Gujarat **potato farmers** (2019) for growing its registered **FL-2027** variety (used for Lay's chips); after protests it withdrew the suits. On a petition by activist **Kavitha Kuguranti**, the **PPV&FR Authority revoked** PepsiCo's registration (**December 2021**) for irregularities in the application; the revocation was then challenged before the **Delhi High Court**. The case highlights **farmers' rights** under S. 39.

2. Biotechnology and IP

- Biotechnology inventions** – genetically modified organisms, microorganisms, gene sequences, processes.
- Patents Act, S. 3(j)** – **plants and animals** in whole or any part (including seeds, varieties and species) and **essentially biological processes** for production or propagation of plants and animals are **not inventions**; but **microorganisms** and **microbiological processes** are patentable.
- Dimminaco AG v Controller of Patents (2002, Calcutta HC)** – a process for preparing a **live vaccine** (involving a living end product) is patentable – "manufacture" includes processes producing living things.
- Monsanto Technology LLC v Nuziveedu Seeds Ltd (2019, SC)** – Monsanto's patent on a **nucleic acid sequence** (Bt cotton trait) – the Supreme Court **set aside** the Delhi HC Division Bench ruling (which had held the claims not patentable under S. 3(j)) and **restored** the single judge's order for a full trial on validity.
- Budapest Treaty (1977)** – international recognition of **deposit of microorganisms** for patent procedure (India joined in **2001**).
- Biological Diversity Act, 2002 (amended 2023)** – IP applications based on **Indian biological resources** require prior approval / registration with the **National Biodiversity Authority**; **access and benefit sharing (ABS)**.

3. Genetic Resources and Traditional Knowledge (GRTK)

1. **Traditional knowledge (TK)** – knowledge, innovations and practices of **indigenous and local communities**, developed over generations (e.g., **Ayurveda**, uses of **neem**, **turmeric**, **basmati**).
2. **Biopiracy** – patenting TK by foreigners without consent or benefit sharing. Famous cases:
 - **Turmeric patent (USA, 1995)** – a US patent on the use of **turmeric for wound healing** was **revoked** (1997) after India's **CSIR** proved **prior art** from ancient texts;
 - **Neem patent (European Patent Office)** – a patent on neem-based fungicide was **revoked** (2000; confirmed 2005);
 - **Basmati (RiceTec, USA, 1997)** – several claims withdrawn after India's challenge.
3. **Traditional Knowledge Digital Library (TKDL)** – India created the **TKDL** (2001) – a database of TK (Ayurveda, Unani, Siddha, Yoga) in five languages, accessible to patent offices (EPO, USPTO, JPO) to prevent wrongful patents.
4. **Patents Act, S. 3(p)** – an invention which, in effect, is **traditional knowledge** or an **aggregation or duplication** of known properties of traditionally known components is **not an invention**.
5. **S. 10(4)(d)(ii)(D)** – applicants must **disclose the source and geographical origin** of biological material used; **S. 25(1)(j), (k)** – opposition for non-disclosure and anticipation by TK.
6. **WIPO Treaty on Intellectual Property, Genetic Resources and Associated Traditional Knowledge (May 2024)** – the **first WIPO treaty** on GRTK – requires **patent applicants** to **disclose the country of origin or source** of genetic resources and associated TK used in a claimed invention. India strongly supported it.
7. **Nagoya Protocol (2010)** to the CBD – access and benefit sharing.

4. Layout Designs of Integrated Circuits

1. **Semiconductor Integrated Circuits Layout-Design Act, 2000 (SICLD Act)** – protects the **layout-design (topography)** of **integrated circuits (chips)**.
2. **Requirements** – **original, distinctive**, capable of distinction from other layout-designs, **not commercially exploited** anywhere (or within two years before application).
3. **Term** – **10 years** from the date of filing or first commercial exploitation.
4. **Registry** – Semiconductor Integrated Circuits Layout-Design Registry (under MeitY).
5. **Relevance** – India's **semiconductor mission** (2021) and chip fabrication plants (e.g., in **Gujarat** and **Assam**) increase its importance.

5. Computer Programs

Protection	Position in India
Copyright	Computer programs are literary works (S. 2(o) , Copyright Act); " computer programme " defined in S. 2(ffc) ; owner has rights including rental (S. 14(b)); exceptions for back-up copies , interoperability , observing and testing (S. 52(1)(aa)–(ad))
Patents	S. 3(k) – "a mathematical or business method or a computer programme per se or algorithms " are not inventions . But computer-related inventions (CRIs) with a technical effect or technical contribution (e.g., improving hardware functioning) may be patentable

Protection	Position in India
Case	<i>Ferid Allani v Union of India (2019, Delhi HC)</i> – inventions based on computer programs are not excluded if they show a technical effect or technical contribution ; " per se " was added to prevent genuine inventions involving software from being denied patents
Guidelines	CRI Guidelines issued by the Patent Office (2017, revised later) explain how to examine software-related inventions

6. Artificial Intelligence and Intellectual Property

AI raises **new questions** for IP law:

Issue	Position / developments
1. Can AI be an "inventor"?	DABUS case (Dr Stephen Thaler filed patent applications naming his AI system "DABUS" as inventor in many countries): rejected by the UK Supreme Court (<i>Thaler v Comptroller-General, December 2023</i>), the US Federal Circuit (<i>Thaler v Vidal, 2022</i>), the EPO ; only South Africa granted a patent (2021, without substantive examination). In India , the Patent Office raised objections that an inventor must be a natural person ; the Patents Act contemplates a "person" (S. 2(1)(s), S. 6)
2. Can AI be an "author"?	Copyright law requires a human author ; for computer-generated works, S. 2(d)(vi) – the " author " is the person who causes the work to be created . In 2020 , the Indian Copyright Office registered an artwork " Suryast " listing the AI tool RAGHAV as a co-author with Ankit Sahni , but later issued a withdrawal notice (2021) – the issue remains unresolved
3. Training AI on copyrighted works	Whether using copyrighted works to train AI models (e.g., large language models) is infringement or fair dealing . <i>ANI Media v OpenAI</i> (filed in the Delhi High Court, November 2024) – the first Indian case; publishers and music labels joined; the Court appointed amici curiae ; the case is pending
4. Ownership of AI outputs	Who owns AI-generated content – the user , the developer , or no one (public domain)?
5. Deepfakes and personality rights	Delhi and Bombay High Courts have granted injunctions protecting personality/publicity rights of celebrities against AI deepfakes and voice cloning (e.g., <i>Anil Kapoor v Simply Life India (2023, Delhi HC)</i> ; <i>Arijit Singh v Codible Ventures (2024, Bombay HC)</i>)
6. Patents for AI inventions	AI-based inventions are examined under S. 3(k) (CRI Guidelines) – patentable if they show technical effect
7. Policy	The DPIIT and Parliament committees are examining whether the Copyright Act and Patents Act need amendment for AI (2023–2025)

Easy rule – AI and IP in India today: Inventors and authors must be human (or the person causing creation); AI training on copyrighted data is under challenge (*ANI v OpenAI*); deepfakes are restrained through personality rights.

Quick Revision – Sections, Numbers, Comparisons and Latest Cases

Key Sections at a Glance

Copyright Act, 1957

Section	Subject
S. 13	Works in which copyright subsists
S. 14	Meaning of copyright – the bundle of rights
S. 17	First owner of copyright
Ss. 18–19A	Assignment – in writing; 5 years and all-India if not specified
Ss. 22–29	Term – life + 60 years
Ss. 31–31D	Compulsory and statutory licences
Ss. 33–36	Copyright societies
Ss. 37–39A	Broadcast reproduction right (25 years); performers' rights (50 years)
S. 51	Infringement
S. 52	Fair dealing and other exceptions
Ss. 54–62	Civil remedies
S. 57	Author's special (moral) rights
Ss. 63–70	Offences – 6 months to 3 years

Trade Marks Act, 1999 and Designs Act, 2000

Section	Subject
S. 2(1)(zb)	Trade mark – graphical representation + capable of distinguishing
S. 2(1)(za)	Trade description
S. 9	Absolute grounds for refusal
S. 11	Relative grounds; well-known marks
S. 18, 20, 21, 23, 25	Application; advertisement; opposition (4 months); registration; 10-year term
S. 27	No infringement action for unregistered mark; passing off saved
S. 28	Rights conferred by registration
S. 29	Infringement; S. 29(4) dilution

Section	Subject
S. 30, 33, 34, 35	Limits; acquiescence (5 years); prior user; own name
Ss. 103, 104	Offences – 6 months to 3 years
Ss. 134, 135	Forum; reliefs
Designs Act S. 2(d)	Definition of design
Designs Act S. 4	Designs not registrable
Designs Act S. 11	Term – 10 + 5 years
Designs Act S. 19	Cancellation
Designs Act S. 22	Piracy – ₹25,000 per contravention, maximum ₹50,000
Copyright Act S. 15	Copyright in designs – lost after 50 reproductions

Patents Act, 1970

Section	Subject
S. 2(1)(j), (ja), (ac)	Invention; inventive step; industrial application
S. 3	What are not inventions – (d) new forms, (j) plants and animals, (k) software per se, (p) traditional knowledge
S. 4	Atomic energy
S. 6, 7	Who may apply; application
Ss. 9, 10	Provisional and complete specification
S. 11A, 11B	Publication (18 months); request for examination
S. 25	Pre-grant and post-grant opposition
Ss. 35-42	Secrecy directions; S. 39 foreign filing permission
S. 43, 48, 53	Grant; rights of patentee; term 20 years
Ss. 54-56	Patents of addition
S. 64	Revocation
S. 83, 84, 85	Working principles; compulsory licence; revocation for non-working
S. 92, 92A	Emergency CL; CL for export of medicines
Ss. 99-103	Government use and acquisition
Ss. 104-111	Infringement suits; S. 104A burden; S. 107A Bolar and parallel import; S. 108 reliefs

Previous Year Questions and Answers

How to Write Answers in the Exam

- **Part A (4 marks):** definition with **section** → 2–3 essentials or features → **one case** → one **example** (a Telangana GI, a drug, a brand).
- **Part B (10 marks):** introduction (meaning + **rationale**) → **history / international background** (Paris, Berne, TRIPS) → **statutory provisions** with sections (table) → **procedure** (steps) → **leading cases** → **limits and exceptions** → **latest developments** (AI, Natco licence, 2024 Rules) → conclusion.
- **Problems: FILAC** – first identify the **type of IP** (patent, copyright, mark, design), then ask: **Is it protectable? Who owns it? Is there infringement? Any exception or defence? What remedy and forum?**

Short Answer Questions (4 Marks)

1. Intellectual Property

Creations of the mind – inventions, literary and artistic works, designs, symbols and names used in commerce (WIPO). **Intangible, territorial, time-limited, exclusive, transferable.** Two branches – **industrial property** (patents, marks, designs, GIs) and **copyright and related rights.**

2. Need for Protection of IP

Reward to creators; **incentive** to innovate; **disclosure** of knowledge; **consumer protection** (marks); **economic growth** and foreign investment; **TRIPS** obligation. Theories – **natural rights (Locke), personality (Hegel), utilitarian/incentive, reward.**

3. Geographical Indications

GI of Goods (Registration and Protection) Act, 1999 – indication that goods **originate in a place** and have **quality or reputation** due to that origin; **10 years**, renewable; owned by **producers' associations**; cannot be assigned. Telangana GIs – **Pochampally Ikat, Hyderabad Haleem, Nirmal toys, Gadwal sarees, Cherial paintings.** **Darjeeling Tea** – India's first GI (2004).

4. Plant Varieties Protection

PPV&FR Act, 2001 – *sui generis* system under TRIPS Art. 27.3(b); **new, distinct, uniform, stable** varieties; **breeders', researchers' and farmers' rights**; farmers may **save, use, exchange and sell** farm seed (not branded); *PepsiCo* potato variety dispute.

5. Traditional Knowledge (GRTK)

Knowledge of **indigenous and local communities** – neem, turmeric, basmati **biopiracy** cases; **S. 3(p), Patents Act; Biological Diversity Act, 2002** (benefit sharing); **TKDL** database; **WIPO Treaty, 2024** on disclosure of origin.

6. Layout-Designs of Integrated Circuits

Semiconductor Integrated Circuits Layout-Design Act, 2000 – protects **original** layout-designs of chips; registration; **10 years**; excluded from patents by **S. 3(o)**.

7. Computer Programmes and IP

Protected as **literary works** under the Copyright Act (S. 2(o), S. 2(ffc)); **S. 3(k)** – not patentable **per se**; patentable if there is a **technical effect** (*Ferid Allani*); S. 52(1)(aa) – back-up copies allowed.

8. Artificial Intelligence and IP

Can AI be an **author or inventor**? – *DABUS* applications refused (inventor must be a **natural person**); Indian law – author of a computer-generated work is the **person who causes it to be created** (S. 2(d)(vi)); training AI on copyrighted data – *ANI v OpenAI* (pending); **deepfakes** and personality rights – *Anil Kapoor* (2023).

9. Paris Convention, 1883

Industrial property; **national treatment**; **right of priority** (12 months – patents; 6 months – marks, designs); **independence of patents**; compulsory licences; protection of **well-known marks** (Art. 6bis); unfair competition (Art. 10bis). India joined in **1998**.

10. Berne Convention, 1886

Copyright; three principles – **national treatment**, **automatic protection (no formalities)**, **independence of protection**; minimum term **life + 50 years**; **moral rights** (Art. 6bis); **three-step test** for exceptions (Art. 9(2)).

11. Madrid System

Madrid Agreement (1891) and **Protocol (1989)** – **one application, one language, one fee** through WIPO for trade mark protection in many countries; based on a **home application/registration**; **central attack** for 5 years; India – **2013**, Chapter IVA of the Trade Marks Act.

12. Patent Cooperation Treaty

1970; **one international application** → **international search (ISR)** → **publication at 18 months** → optional preliminary examination → **national phase at 30/31 months**. **No international patent** – each office grants. Indian Patent Office is an **ISA/IPEA**.

13. WIPO

World Intellectual Property Organization – Convention of **1967** (Stockholm); UN specialised agency (1974); HQ **Geneva**; administers Paris, Berne, PCT, Madrid and other treaties; **Arbitration and Mediation Center** (UDRP); organs – General Assembly, Conference, Coordination Committee, International Bureau.

14. WIPO Copyright Treaty, 1996

"**Internet treaty**" – a special agreement under Berne; protects **computer programs** and **databases**; rights of **distribution, rental and communication to the public** (making available online); **technological protection measures** and **rights management information**. India – Ss. 65A, 65B (2012); joined in 2018.

15. TRIPS Agreement

Annex 1C of the WTO Agreement (1994); **minimum standards** for 7 types of IP; **national treatment** and **MFN**; **enforcement** rules; **dispute settlement**; patent term **20 years**; flexibilities – compulsory licences (Art. 31), exceptions (Art. 30), exhaustion (Art. 6).

16. Impact of TRIPS on India

Patents amendments of **1999, 2002, 2005** (product patents); new Trade Marks Act 1999, Designs Act 2000, GI Act 1999, PPV&FR Act 2001; Copyright amendments; India used flexibilities – **S. 3(d), compulsory licence, Bolar**, opposition.

17. Idea-Expression Dichotomy

Copyright protects the **expression**, not the **idea**. *R.G. Anand v Delux Films (1978, SC)* – same theme (provincialism) treated differently is no infringement; test – whether the viewer gets an **unmistakable impression** that the later work is a **copy**. **Merger doctrine** and **scènes à faire**.

18. Originality in Copyright

"Original" = **originating from the author**, not novel. From **sweat of the brow** (*University of London Press*) to **modicum of creativity** (*Feist*). India – *EBC v D.B. Modak (2008, SC)* – **skill and judgment** with a **minimum degree of creativity**; copy-edited judgments with paragraphing and head-notes protected, raw text not.

19. Works in which Copyright Subsists

S. 13 – (a) **original literary, dramatic, musical and artistic works**; (b) **cinematograph films**; (c) **sound recordings**. Literary work includes **computer programmes and databases**. No copyright in ideas, facts, titles or names.

20. Neighbouring Rights

Rights of those who **bring works to the public** – **performers** (Ss. 38, 38A, 38B – 50 years; moral rights), **broadcasting organisations** (S. 37 – 25 years) and producers of sound recordings. Rome Convention, 1961; WPPT, 1996.

21. First Owner of Copyright

S. 17 – the **author** is the first owner. Exceptions – works by **employees** of newspapers (for publication); **commissioned** photographs, portraits, films (the person paying); works made in the course of **employment** (employer); **Government** works; works of international organisations. Subject to **contract to the contrary**.

22. Moral Rights

S. 57 – **author's special rights**: (i) **paternity** – to claim authorship; (ii) **integrity** – to restrain or claim damages for **distortion, mutilation or modification** prejudicial to honour or reputation. They survive **assignment**. *Amar Nath Sehgal v Union of India (2005)* – mural destroyed; damages awarded.

23. Assignment of Copyright

Ss. 18–19A – whole or partial; of **future works** also; must be **in writing, signed**, specifying work, rights, **duration, territory and royalty**. If not specified – **5 years** and **India**. Lapses if rights not exercised within **1 year**. Authors of works in films keep an **equal share of royalty** (2012).

24. Copyright Societies

Ss. 33–36 – registered societies for **collective management**: issue licences, collect and **distribute royalties**; controlled by **authors and owners**; tariff schemes; e.g., **IPRS** (music and lyrics), **ISAMRA** (performers), **IRRO** (reprography).

25. Infringement of Copyright

S. 51 – doing, without licence, anything the owner alone may do; permitting a **place** to be used for infringing communication for profit; **selling, distributing, exhibiting or importing** infringing copies. Test – **substantial copying** of expression (*R.G. Anand*).

26. Fair Dealing

S. 52(1)(a) – fair dealing with any work (not being a computer programme) for (i) **private or personal use including research**; (ii) **criticism or review**; (iii) **reporting of current events**. Factors – purpose, amount taken, effect on the market. *Civic Chandran v Ammini Amma* (1996, Kerala HC); *DU Photocopy case*.

27. Remedies for Copyright Infringement

Civil (Ss. 54–62) – injunction, damages, accounts, delivery up; **Anton Piller, John Doe, dynamic** injunctions; **Criminal** (Ss. 63–70) – 6 months to 3 years + ₹50,000 to ₹2 lakh; cognizable (*Knit Pro*); **Administrative** – customs (S. 53), take-down notices.

28. Definition of Trade Mark

S. 2(1)(zb) – a **mark** capable of being **represented graphically** and capable of **distinguishing** the goods or services of one person from those of others; may include **shape, packaging and combination of colours**. Functions – origin, quality, advertising.

29. Trade Description

S. 2(1)(za) – any description as to **quantity, quality, fitness, place or time of manufacture, identity of manufacturer, mode of manufacture, material** or patent status of goods. **False trade description** – offence under **Ss. 103 and 104**.

30. Well-Known Trade Mark

S. 2(1)(zg) – a mark so known to a **substantial segment of the public** that its use on other goods indicates a **connection** with the owner. Protected against use on **dissimilar goods** (Ss. 11(2), 29(4)). Factors – S. 11(6). *Daimler Benz v Hybo Hindustan*; *Whirlpool*.

31. Collective and Certification Marks

Collective mark – owned by an **association**, used by its **members** (Ss. 61–68). **Certification mark** – certifies **quality, origin or material**; owner does not trade in the goods (Ss. 69–78) – **ISI, Agmark, Hallmark, Woolmark**.

32. Non-Conventional Trade Marks

Shape, colour, sound, smell, taste, motion, hologram marks. Hurdle – **graphical representation** (*Sieckmann*). India – sound marks in **MP3 + notation** (Yahoo yodel, 2008); shape marks subject to **S. 9(3)**; first smell mark accepted in 2025.

33. Domain Names

Internet address acting as a **business identifier**; protected like trade marks through **passing off** – *Yahoo v Akash Arora* (1999), *Satyam Infoway v Sifynet* (2004, SC). **Cybersquatting**; **UDRP** (three elements – similarity, no legitimate interest, bad faith); **INDRP** for .in.

34. Absolute Grounds for Refusal

S. 9 – not distinctive; **descriptive**; **generic/customary**; deceptive; hurting **religious** feelings; **scandalous or obscene**; prohibited emblems; functional **shapes**. Exception – **acquired distinctiveness**.

35. Passing Off

Common law tort – **nobody may sell his goods as another's**. **Classical trinity** – **goodwill, misrepresentation, damage** (*Reckitt & Colman v Borden*). Protects **unregistered** marks (S. 27(2)). *Cadila* (2001); *Syed Mohideen* (2016) – prior user prevails.

36. Infringement of Trade Mark

S. 29 – use in the course of trade of an **identical or deceptively similar** mark on identical/similar goods causing **confusion**; **presumed** where both are identical (S. 29(3)); **dilution** of marks with reputation (S. 29(4)); use as trade name; in advertising. *Renaissance Hotel* (2022).

37. Deceptive Similarity

S. 2(1)(h) – a mark so nearly resembling another as to be **likely to deceive or cause confusion**. Test – **average buyer with imperfect recollection**; **overall impression**; phonetic and visual similarity. *Amritdhara v Lakshmandhara*; *Cadila* factors.

38. Definition of Design

S. 2(d), Designs Act, 2000 – features of **shape, configuration, pattern, ornament or composition of lines or colours** applied to an **article** by an **industrial process**, which **appeal to and are judged solely by the eye**; excludes mechanical devices, trade marks and artistic works.

39. Piracy of Registered Design

S. 22 – applying the design or a **fraudulent or obvious imitation** to articles in the class for sale; importing; exposing for sale. Remedy – **₹25,000 per contravention (maximum ₹50,000)** or suit for **damages and injunction**; S. 19 grounds are defences.

40. Copyright in Designs

S. 15, Copyright Act – no copyright in a **registered design**; copyright in a registrable but **unregistered** design **ceases** after **more than 50 reproductions** by industrial process. *Microfibres v Girdhar*; *Cryogas v Inox* (2025).

41. Invention and Inventive Step

S. 2(1)(j) – new product or process involving an **inventive step** and capable of **industrial application**. **S. 2(1)(ja)** – technical advance or economic significance, **not obvious to a person skilled in the art**.

Bishwanath Prasad (1979).

42. Section 3(d) of the Patents Act

No patent for a **new form of a known substance** unless it shows **enhanced efficacy**; prevents **evergreening**. *Novartis v Union of India (2013)* – efficacy means **therapeutic efficacy**; Glivec patent refused.

43. Product Patent and Process Patent

Product patent – protects the product however made; **process patent** – protects only the method. 1970 Act – only process patents for drugs and food; **2005** – product patents in all fields. S. 48; S. 104A burden of proof.

44. Patent of Addition

Ss. 54–56 – for an **improvement or modification** of the main invention; **no renewal fee**; term **ends with the main patent**; not refused for obviousness over the main invention.

45. Specification

Provisional (S. 9) – secures the priority date; **complete** within **12 months**. **Complete specification** (S. 10) – full description, **best method**, **claims**, abstract. Claims define the **scope of the monopoly**.

46. Opposition to Grant of Patent

S. 25(1) – **pre-grant**: any person, after publication and before grant. **S. 25(2)** – **post-grant**: person interested, within **1 year** of grant; Opposition Board. Grounds – prior publication, obviousness, non-patentability, insufficient disclosure, traditional knowledge.

47. Compulsory Licence

S. 84 – after **3 years** from grant, on grounds of (a) public requirements not satisfied; (b) not **reasonably affordable**; (c) **not worked in India**. **S. 92** – emergency; **S. 92A** – export of medicines. *Natco v Bayer (2012)* – Nexavar.

48. Secrecy Directions

Ss. 35–42 – Controller may prohibit publication of inventions relevant to **defence**; reviewed by the Central Government; no patent granted while in force; **S. 39** – residents need **permission** to file abroad (or wait **6 weeks**); breach – abandonment/revocation and offence (S. 118).

49. Bolar Exception and Parallel Import

S. 107A(a) – using a patented invention to **generate data for regulatory approval** is not infringement (*Bayer v Union of India, 2019*). **S. 107A(b)** – importing patented products from a person **duly authorised** to sell them is not infringement.

END OF FREE SAMPLE

Get the complete Semester IV book

Osmania University · LL.B. (3-YDC) · 6 papers · 486 pages

PAPERS IN THE FULL BOOK

Paper I – Labour Law-II (Wages, Social Security and Welfare)	82 pages
Paper II – Law of Insurance	77 pages
Paper III – Interpretation of Statutes	67 pages
Paper IV – Land Laws (with Telangana Laws)	66 pages
Paper V – Intellectual Property Law	98 pages
Paper VI – Private International Law	92 pages

WHAT YOU GET

- ◆ The **whole semester in one book** – every paper, every unit
- ◆ **Latest cases** and recent amendments as examples
- ◆ **Short answers, essay guides and solved problems** for every paper
- ◆ **Quick revision tables** for the last day before the exam
- ◆ Clickable **bookmarks and contents**; for LL.B. (**General**) and (**Honours**) students

This sample shows 25 of the 486 pages. Page numbers are the same as in the full book.

Buy and download the full book at

www.saathlegal.com

Saath Legal · Exam-Ready LLB Notes